



CHAPTER ii

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to Oban Burgh. [28th November 1956.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Oban Burgh Order Confirmation Act 1956.

Short title.

SCHEDULE

OBAN BURGH

PROVISIONAL ORDER to authorise the Corporation of the burgh of Oban to borrow moneys for the purposes of the Oban Piers and Harbour Orders 1862 to 1921 and for other purposes.

Whereas by virtue of the Oban Piers and Harbour Orders 1862 to 1921 the North and South Piers of Oban and the harbour of Oban as the same are described in the said Orders are vested in the provost magistrates and councillors of the burgh of Oban (hereinafter called "the Corporation" and "the burgh" respectively) to be held by them as part of the burgh property:

And whereas by virtue of the Oban Piers Order 1896 the Corporation are empowered to carry out works for the maintenance alteration and improvement of the said North and South Piers:

And whereas the Corporation are desirous of carrying out certain works of improvement and repair at the said North Pier at an estimated cost of £45,000 and it is expedient that the said works should be carried out:

And whereas it is expedient that the Corporation should have power to borrow the sum of £30,000 to be applied for the purposes of the said works and for the general purposes of the Oban Piers and Harbour Orders 1862 to 1921:

And whereas it is expedient that the further powers mentioned in this Order should be conferred upon the Corporation:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

Short title
and citations.

- 1.—(1) This Order may be cited as the Oban Burgh Order 1956.
- (2) This Order and the Oban Burgh Acts 1881 and 1921 may be cited together as the Oban Burgh Acts 1881 to 1956.
- (3) This Order and the Oban Piers and Harbour Orders 1862 to 1921 may be cited together as the Oban Piers and Harbour Orders 1862 to 1956.

Commencement
of Order.

2. This Order shall come into operation on the date of the passing of the Act confirming this Order which date is in this Order referred to as the commencement of this Order.

Interpretation.

3. In this Order unless there be something in the subject or context repugnant to such construction the following words and expressions shall have the meanings hereby assigned to them (that is to say):—

"Corporation" means the provost magistrates and councillors of the burgh of Oban;

"North Pier" means the North Pier as described in section 10 (Transfer of North Pier &c. to Commissioners) of the Order of 1896;

"Order of 1896" means the Oban Piers Order 1896.

4.—(1) Subject to the provisions of this Order the Corporation ^{Power to} may from time to time (in addition to any moneys they are now borrow money. authorised to borrow) borrow or raise—

(a) for the purpose of exercising the powers vested in the Corporation by the Oban Piers and Harbour Orders 1862 to 1921 including in particular the powers vested in them by the Order of 1896 for the maintenance alteration and improvement of the North Pier the sum of thirty thousand pounds; and

(b) for paying the costs charges and expenses of and incidental to the preparing for obtaining and confirming of this Order or otherwise in relation thereto such sum of money as may be necessary for that purpose:

Provided that any moneys borrowed for the purpose (a) above mentioned shall be repaid within thirty years from the date or dates of borrowing the same and any moneys borrowed for the purpose (b) above mentioned shall be repaid within five years from the commencement of this Order.

(2) In addition to any moneys borrowed or authorised to be borrowed under subsection (1) of this section the Corporation may borrow with the sanction of the Secretary of State such sums of money as may be required to be expended by the Corporation for the purposes of the Oban Piers and Harbour Orders 1862 to 1921 to which capital is properly applicable.

5. All moneys borrowed by the Corporation under the powers of this Order shall be applied only to the purposes for which such moneys are authorised to be borrowed and to which capital is properly applicable. ^{Application of moneys borrowed.}

6. Nothing in this Order shall authorise the exercise of any power of borrowing money or the making of any issue of capital otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946 or of section 259 of the Local Government (Scotland) Act 1947 as amended by subsection (1) of section 4 of the Local Government (Scotland) Act 1951. ^{Saving for control on borrowing.}

7. The costs charges and expenses of and incidental to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Corporation out of the burgh fund in such manner as the Corporation may determine. ^{Costs of Order.}

Table of Statutes referred to in this Act

Short title	Session and chapter
Private Legislation Procedure (Scotland) Act 1936	26 Geo. 5 & 1 Edw. 8 c. 52.
Borrowing (Control and Guarantees) Act 1946 ...	9 & 10 Geo. 6 c. 58.
Local Government (Scotland) Act 1947 ...	10 & 11 Geo. 6 c. 43.
Local Government (Scotland) Act 1951 ...	14 & 15 Geo. 6 c. 15.

PRINTED BY JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 4d. net

PRINTED IN GREAT BRITAIN

(38083)